

HISTORICAL BACKGROUND OF THE INDIAN CONSTITUTION

Company power -> parliamentary regulation -> Crown rule -> representation -> responsibility -> federal design -> sovereign Constitution

EXAM ENGINE: exact Act + institutional change + significance + operational/democratic limit

CONTROL: 1773 GG Bengal | 1833 GG India | 1858 Viceroy | 1909 electorate | 1919 dyarchy | 1935 autonomy

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THE CONSTITUTIONAL QUESTION

1600 chartered commerce -> 1757 Plassey -> 1764 Buxar -> 1765 Diwani
-> corporate fiscal-territorial power without public accountability
-> 1773 Parliament begins statutory regulation
CONTROL TEST: who directs the executive, makes law, controls money and is represented?

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1773-1793 CONTROL ARCHITECTURE

1773: GG of Bengal + council; Calcutta Supreme Court opened 1774
1781: official/revenue jurisdiction clarified; personal law recognised
1784: Board of Control + Court of Directors = metropolitan double government
1786/1793: stronger executive override; monopoly renewed; supervision charged to India
TRAP: Bengal Dual Government (1765-72) is not Pitt's double-government structure.

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1813-1853 CHARTER TRANSFORMATION

1813: monopoly ends EXCEPT tea/China; Crown sovereignty; missionaries; education grant
1833: GG of India (Bentinck); Company trade ends; central legislation; Law Member
1853: legislative/executive work differentiated; six councillors; four local members;
open competition route -> Macaulay Committee 1854; no fixed Company renewal
VERDICT: the Company ceased to be trader before it ceased to be ruler.

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1858 CROWN TRANSFER

Company, Court of Directors and Board of Control abolished
-> Secretary of State for India + 15-member Council
-> Governor-General also Viceroy; Lord Canning first
CHANGE: corporate sovereignty -> Crown sovereignty
LIMIT: accountability shifted to Britain, not to an Indian representative legislature.

REPRESENTATION WITHOUT RESPONSIBILITY

1861 nomination -> Indian non-officials; portfolio; provincial legislation; ordinances
1892 scrutiny -> budget discussion + questions; indirect-election element
1909 segmented election -> separate Muslim electorates; central official majority;
S.P. Sinha first Indian in Viceroy's Executive Council
LADDER: association -> scrutiny -> election; executive responsibility remains absent.

1919 DYARCHY

CENTRE: subject separation + bicameralism + direct restricted election
PROVINCES:
RESERVED -> finance, police, justice, prisons, land revenue -> Governor/Executive Council
TRANSFERRED -> education, health, agriculture, local government -> responsible ministers
OTHER: High Commissioner, provincial budgets PSC -> Central PSC 1926; Chamber of Princes
FAILURE: responsibility without full finance, coercion or coordinating authority.

BRIDGE TO 1935

Simon Commission 1927 (all seven British) -> report 1930
-> Round Tables 1930/1931/1932 -> White Paper -> Joint Select Committee -> 1935 Act
Communal Award 1932 -> separate electorates for depressed classes proposed
-> Poona Pact -> reserved seats within joint electorates
TRAP: Simon alone did not write 1935; Poona Pact did not retain separate electorates.

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1935 PROVIDED VERSUS OPERATED

PROVIDED: Federation = provinces + acceding princely states; three lists;
residuary allocation by Governor-General; central dyarchy
OPERATED: provincial autonomy from 1937; Federal Court from 1937
NOT COMMENCED: federation and central dyarchy
RESERVED CENTRE: defence, external affairs, ecclesiastical affairs, tribal areas

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1935 INSTITUTIONAL DEPTH

bicameralism in Bengal, Bombay, Madras, Bihar, Assam, United Provinces
Federal/Provincial/Joint PSCs | Auditor-General | Federal Railway Authority
Council of India abolished | Burma separated | Orissa and Sind created
franchise expanded but qualification-based | Governors retain safeguards
RBI CONTROL: RBI Act 1934 created the bank; operations began 1935.

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1947 SOVEREIGNTY BRIDGE

20 Feb Attlee -> 3 Jun Plan -> 18 Jul Act -> 15 Aug Dominions
-> Viceroy and Secretary of State for India abolished
-> Assemblies legislate, frame constitutions and repeal British Acts
-> paramountcy lapses, accession is not automatic absorption
-> adapted 1935 Act prevents a legal-administrative vacuum
-> 26 Nov 1949 adoption -> 26 Jan 1950 Republic

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INSTITUTIONAL LINEAGES

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EXECUTIVE: GG Bengal -> GG India -> Viceroy -> parliamentary executive
LEGISLATURE: centralisation -> nomination -> scrutiny -> election -> responsibility
JUDICIARY: Calcutta Supreme Court -> High Courts 1861 -> Federal Court 1937 -> Supreme Court
SERVICES: patronage -> 1853 competition -> PSC 1926 -> 1935 commissions -> UPSC/SPSC
FINANCE/AUDIT: Diwani -> budget scrutiny -> provincial budgets -> RBI/audit -> CAG
RULE: ancestry does not prove identical power, independence or purpose.

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EXAM CONTROL AND VERDICT

1773 GG Bengal | = 1833 GG India | = 1858 Viceroy
1909 separate electorate | = 1919 provincial dyarchy | = 1935 autonomy
1935 federation/central dyarchy: provided, NOT commenced
1947 paramountcy: lapsed, NOT automatically transferred
ANSWER: claim -> named Act -> effect -> limit -> retained/transformed/rejected
VERDICT: inherited machinery + democratic rupture = constitutional transformation.